

TENTATIVE RULING

Jason Lloyd Williams

v.

Aaron Robert Erwin

25CV005969

Plaintiff's Motion for Leave to File First Amended Complaint

Hearing Date: September 4, 2026

The motion of Plaintiff Jason Lloyd Williams ("Plaintiff") for leave to file his First Amended Complaint ("FAC") is **DENIED WITHOUT PREJUDICE** to filing another such motion that complies with Rule 3.1324 of the California Rules of Court ("Rule 3.1324").

The court may, at its discretion, after notice to the opposing party, allow an amendment to any pleading on any just terms. [Code Civ. Proc. § 473, subd. (a)(1).] The motion must include a copy of the proposed pleading and specify which allegations are to be deleted or added. [Cal. Rules of Ct., rule 3.1324, subd. (a).] It must also be supported by a declaration that explains: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts prompting the amended allegations were discovered; and (4) why the request for amendment was not made earlier. [*Id.* at subd. (b).]

Plaintiff's motion did not fully comply with Rule 3.1324. First, Plaintiff failed to meet subdivision (a) because he did not: (1) include a copy of the Proposed FAC, "which must be serially numbered to differentiate it from previous pleadings or amendments"; (2) state which allegations from the previous pleading are to be deleted, including their exact location by page, paragraph, and line; and (3) state which allegations are to be added, with specific location details. Second, Plaintiff failed to accompany his motion with a declaration that complies with subdivision (b).

Therefore, the motion is **DENIED WITHOUT PREJUDICE** to Plaintiff filing another motion that complies with Rule 3.1324. Defendant shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.